

LINE #	CASE #	CASE TITLE	RULING
LINE 1	23CV424954	Hall v. Cepheid, et al. (Class Action/PAGA)	Motion: Leave to Amend is GRANTED in part and DENIED in part Click on lines 1-2 for tentative ruling
LINE 2	23CV424954	Hall v. Cepheid, et al. (Class Action/PAGA)	Hearing: Other
LINE 3	23CV428171	Mizerski v. HCSG West LLC, et al. (PAGA)	Motions to Compel are GRANTED in part and DENIED in part, or moot, requests for Sanctions are DENIED Click on lines 3-4 for tentative ruling
LINE 4	23CV428171	Mizerski v. HCSG West LLC, et al. (PAGA)	Motion: Compel
LINE 5	24CV438933	Villalobos v. R-Bros. Painting, Inc., et al. (PAGA)	Motion: Preliminary Approval of Settlement is GRANTED Click on line 5 for tentative ruling
LINE 6	24CV452241	Michael Spatz vs Charles Liang et al	Motion: Seal is GRANTED Click on line 6 for tentative ruling
LINE 7	25CV457271	JACQUELINE JACKSON et al vs LINKEDIN CORPORATION (Class Action)	Hearing: Demurrer is OVERRULED. Due to orders for sealing, the full tentative ruling will be sent directly to the parties. Click on line 7 for tentative ruling
LINE 8	25CV461988	Cruz Juarez et al vs Century Commercial Service (Class Action / PAGA)	Motion: Preliminary Approval is GRANTED Click on line 8 for tentative ruling

LINE 9	25CV472683	Shannon McElrath vs Commure, Inc.(Class Action)	Hearing: Petition Compel Arbitration and Stay Action is DENIED Click on line 9 for tentative ruling
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Case Name: *Hall v. Cepheid, et al.*

Case No.: 23CV424954

This is a representative action under the Private Attorneys General Act (“PAGA”). Plaintiff Darryl Hall alleges defendant Cepheid committed various wage and hour violations.

Before the Court is Plaintiff’s motion for leave to file a fourth amended complaint (“4AC”), and to sever his claims, which is opposed. As discussed below, the Court GRANTS Plaintiff’s motion for leave to amend, in part and DENIES it in part; the Court GRANTS Plaintiff’s motion to sever his individual FEHA claims from class and PAGA claims for trial purposes.

I. BACKGROUND

According to the allegations of the operative third amended complaint (“TAC”), Plaintiff worked for Defendant as a non-exempt employee from approximately 2021 to 2023. (TAC, ¶ 1.) Defendant failed to: provide compliant meal periods or compensation in lieu thereof; provide compliant rest breaks or compensation in lieu thereof; pay overtime wages; pay minimum wages; timely pay wages during employment; furnish accurate itemized wage statements; maintain required records; and indemnify employees for necessary expenditures. Plaintiff also asserts individual claims for violation of the Fair Employment and Housing Act (“FEHA”) and wrongful termination.

Based on the foregoing, Plaintiff initiated this action on October 26, 2023, with the filing of the Complaint which asserted the following claims: (1) failure to pay minimum wages; (2) failure to pay overtime wages; (3) failure to provide meal periods or premium pay in lieu thereof; (4) failure to provide rest periods or premium pay in lieu thereof; (5) failure to reimburse necessary business expenses; (6) failure to provide and maintain accurate records; (7) failure to pay wages when due; (8) PAGA penalties; (9) violation of California’s Unfair Competition Law; (10) discrimination in violation of FEHA; (11) harassment in violation of FEHA; (12) failure to prevent discrimination and harassment in violation of FEHA; and (13) wrongful termination in violation of public policy.¹ On March 15, 2024, he filed his first amended complaint (“FAC”), which asserted the same claims and on October 28, 2024, the Court (Hon. Adams) issued its order, which overruled the demurrer to the FAC, in part, and sustained, in part, with leave to amend. On November 13, 2024, Plaintiff filed the second amended complaint, and on December 16, 2024, he filed the operative third amended complaint (“TAC”), which asserts the same causes of action.

II. REQUEST FOR JUDICIAL NOTICE

Defendant requests judicial notice of the following items:

- (1) The court’s order in *Land Value Holdings v. City of Duarte*, Los Angeles County Superior Court, which denied leave to amend, dated October 20, 2021: Exhibit A;
- (2) The court’s order in *Citibank v. Polny*, Orange County Superior Court, which denied leave to amend, dated November 18, 2013: Exhibit B; and

¹ Causes of action ten through thirteen are asserted on an individual basis.